

11. 25CV01688 Pressley, Ronald v. General Motors, LLC

EVENT: Plaintiff's Motion to Vacate Dismissal Pursuant to CCP 473(b)

Plaintiff's Motion to Vacate Dismissal Pursuant to CCP 473(b) is GRANTED. A Case Management Conference is hereby scheduled for July 15, 2026 at 10:30am. Additionally, consistent with the Legislature's intent in enacting CCP 871.26, the parties are ordered to mediate this case within 150 days of this order.

Plaintiff shall prepare a form of order consistent with this ruling within 2 weeks.

12. 25CV03376 Li, Yi v. AMCAL Chico, LLC et al.

EVENT: Plaintiff's Motion for Leave to File Second Amended Complaint

Plaintiff's Motion for Leave to File Second Amended Complaint is denied. On May 17, 2026 Plaintiff attempted to file a proof of service with the Court. That proof of service does not demonstrate that this motion was served – rather it is a proof of service re: "Notice Regarding Electronic Service". Additionally, CRC 3.1300 requires the proof of service be filed no later than five court days before the hearing.

Further, CCP 1013b sets forth the requirements for a proof of service when service is accomplished via e-mail. The proof of service submitted does not satisfy the requirements of CCP 1013b: it does not set forth "the exact title of the document served and filed in the cause", which in this case should have been the initial motion; and the proof of service does not state the date for which the moving papers were served.

As Plaintiff appears to have elected to use electronic service as the primary means of service, Plaintiff is directed to comply with CCP 1013b when filing future proofs of service. Best practices dictate a proof of service should be filed contemporaneously with the underlying document.

13. 25CV02049 Christina Dake, Guardian Ad Litem for Peyton Dake v. Biggs Unified School District

EVENT: Defendant Biggs Unified School District's Demurrer to Plaintiff's First Amended Complaint

Defendant Biggs Unified School District's Demurrer to Plaintiff's First Amended Complaint is SUSTAINED WITH LEAVE TO AMEND.

Since the duty of a governmental agency can only be created by statute or 'enactment,' the statute or 'enactment' claimed to establish the duty must at the very least be identified. (*Ramsey v. City of Lake Elsinore* (1990) 220 Cal.App.3d 1530, 1542) As Defendant noted, Civil Code 1714 does not itself impose liability on a government entity. (*Eastburn v. Regional Fire Protection Authority* (2003) 31 Cal.4th 1175, 1183)

Plaintiff shall amend within 20 days' notice of this order. Defendant shall prepare the form of order.

14. 25CV05008 Briggs, Cheyenne et al v. Muniz, Christian et al.

EVENT: Motion to Set Aside Defaults Entered Against Defendants Christian Muniz and Mollie Gunn

Motion to Set Aside Defaults Entered Against Defendants Christian Muniz and Mollie Gunn is GRANTED and is unopposed. The Court will sign the proposed order.

15. 25MH00574 Chico Police Department v. Lucas, Cole Buchanan

EVENT: Petition for Determination Regarding Return of Deadly Weapons

The Court will conduct a hearing. The Court notes the Petition does not appear to include a statement that Respondent was issued a receipt as required by Welfare & Institutions Code 8102. Although the Petition appears to indicate that is forthcoming, the Court is not finding it in the file.